

SECTION: 1. DEFINITION OF CONFIDENTIAL INFORMATION

'Confidential Information' includes all non-public technical data, trade secrets, software code, algorithm specifications, business plans, customer lists, and financial records disclosed by one party ('Disclosing Party') to the other ('Receiving Party').

SECTION: 2. EXCLUSIONS FROM CONFIDENTIALITY

Confidential Information does not include information that is already in the public domain without breach, rightfully received from a third party without duty of confidentiality, or independently developed without reference to the Disclosing Party's information.

SECTION: 3. RECIPIENT OBLIGATIONS

The Receiving Party agrees to hold all Confidential Information in strict confidence, using at least the same degree of care it uses for its own sensitive data, but not less than reasonable care. Receiving Party shall not disclose Confidential Information to any third party without prior written consent.

SECTION: 4. CONTRACT DURATION AND SURVIVAL

This Agreement governs disclosures made within two (2) years of the Effective Date. The confidentiality obligations regarding trade secrets shall remain in perpetuity, while all other confidential technical materials shall remain protected for three (3) years post-termination.

SECTION: 5. REMEDIES FOR BREACH

The parties acknowledge that unauthorized disclosure or use of Confidential Information will cause irreparable harm for which monetary damages alone would be inadequate. Accordingly, the Disclosing Party shall be entitled to seek injunctive relief and specific performance.

SECTION: 6. GOVERNING LAW

This Mutual Non-Disclosure Agreement shall be governed by and construed under the laws of the State of New York, United States.